

HOUSE No. 105

The Commonwealth of Massachusetts

PRESENTED BY:

Marcus S. Vaughn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to electronic security for the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/3/2025</i>

HOUSE No. 105

By Representative Vaughn of Wrentham, a petition (accompanied by bill, House, No. 105) of Marcus S. Vaughn relative to electronic security for certain procurements involving electronic or cyber security equipment components. Advanced Information Technology, the Internet and Cybersecurity.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 84 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to electronic security for the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 30B of the General Laws, as appearing in the 2020 Official
2 Edition, is hereby amended by adding the following section:-

3 Section 24. (a) All contracts, subcontracts or procurements of over \$500,000 made by the
4 commonwealth or any of its quasi government agencies or independent agencies involving any
5 electronic or cyber security equipment component, including but not limited to, computers,
6 computer software, electronic and cyber security equipment components used in rail cars and
7 electronic and cyber security equipment components used in wind farms, shall comply with the
8 regulations set forth in the Commerce Control List promulgated by the Federal Bureau of
9 Industry and Security.

SECTION 2. The chief procurement officer shall adopt, and from time to time update, rules and regulations prohibiting the procurement of any equipment and services contained in the Covered List published by the Federal Public Safety and Homeland Security Bureau pursuant to the Secure and Trusted Communications Networks Act, Pub. L. 116-124.

SECTION 3. (a) Any entity that receives grant monies or other funding from the commonwealth shall not purchase or use any electronic or cyber security equipment or component parts produced by entities based in China, including the Chinese Communist Party.

(b) Any entity that receives grant monies or other funding from the commonwealth that owns or uses any electronic or cyber security equipment or component parts produced by entities based in China, including the Chinese Communist Party, shall develop a plan to replace them with electronics or cyber security equipment or component parts that were produced by an entity that is not based in China. The plan shall be filed with the clerks of the house of representatives and the senate no more than 90 days after the enactment of this act.

(c) Any entity required to submit a plan pursuant to subsection (b) shall replace any electronic or cyber security equipment or component parts produced by entities based in China no later than 180 days after the enactment of this act.